

RESOLUTION NO. 2026.12

A RESOLUTION IMPOSING A TEMPORARY MORATORIUM ON THE ESTABLISHMENT OF A DATA CENTER, INCLUDING THE DEVELOPMENT AND CONSTRUCTION OF ANY BUILDING OR STRUCTURE, APPROVAL OF ZONING CERTIFICATE OF USE, CHANGE OF USE OR REZONING THAT WOULD ALLOW DATA CENTERS THROUGH JANUARY 31, 2027 IN ORDER TO ALLOW THE CITY ADMINISTRATION AND CITY COUNCIL TIME TO REVIEW APPLICABLE FEDERAL CODES, OHIO STATUTES, CODES AND REGULATIONS ALONG WITH THE CITY'S CODIFIED ORDINANCES AND ZONING CODE REGULATIONS RELATIVE TO SUCH ACTIVITY

WHEREAS, pursuant to the Constitution of the State of Ohio, the Ohio Revised Code and the **City of Sunbury** Charter provide that municipalities have the power to enact laws that are for the health, safety, and welfare of their citizens which may include restricting areas used for certain businesses and trades; and

WHEREAS, this Council finds it to be in the best interest of the health, safety, and general welfare of the citizens of **Sunbury** to adopt a moratorium through January 31, 2027 on the establishment, development, approval of a certificate of sue or change of use or rezonings that would facilitate or development or construction of data centers within the City, while it undertakes a review and/or study of the ordinances of the **City of Sunbury**, including zoning, building, and business regulation sections of the **Sunbury** Codified Ordinances to assure that such facilities are properly zoned, safe for the community, properly constructed to mitigate the potential harmful impact such facilities can have on residential and commercial areas; and

WHEREAS, City Council wishes to study the impact of data centers on the public health and safety of surrounding neighborhoods and consider and study the benefits that a data center may bring to the community. Groups have raised concerns about property values, noise, health, safety, the power grid, the environment and water usage in areas surrounding these facilities.

WHEREAS, this Council will be able to enact reasonable regulations to protect the health, safety, welfare, peace, and comfort of the citizens of the **City of Sunbury** more effectively if a moratorium is in place.

NOW, THEREFORE, BE IT RESOLVED by the Council for the City of Sunbury, State of Ohio, that:

SECTION I - That the Council of the **City of Sunbury** hereby imposes an moratorium through January 31, 2027 on the consideration, approval or authorization of any licenses, permits, permitted uses, special uses, accessory uses or variances that would enable the of the granting of any permits, allow establishment, construction, conversion of other structures into data centers, or commencement of construction of data centers within the **City of Sunbury**. Said moratorium extends to the submission, consideration or approval of all applications for licenses, permits, general development plans, final development plans, special or accessory use permits, zoning certificates, occupancy permits, building permits or rezoning to Limited Industrial District (L-I). Data centers are defined for this moratorium as AI data centers, enterprise data centers, managed services data centers colocation data centers, cloud data centers or edge data centers as well as physical facilities that organizations use to store their computing machines and related hardware that exceed 5,000 square feet in size. This moratorium includes construction of structures that house information technology (IT) systems infrastructure like servers, data storage drives, and network equipment and construction of accompanying accessory uses such as utilities, external mechanical equipment, water towers, and security facilities that may be located on the same site of a data center. This moratorium does not apply to repair or

replacement of existing data centers or the data centers contained in existing businesses within the **City of Sunbury**, if any.

SECTION II - That this moratorium shall become effective on the date that this resolution, following its passage by the Council, shall remain in effect following the date upon which it became effective until January 31, 2027 unless extended upon a majority vote of the Council, if the Council finds such continuance is required to allow sufficient time for the administration to complete its study and recommend what action, if any, the **City of Sunbury** should take to safeguard the public health, safety and welfare through the provision of adequate planning, zoning, land use, or other regulatory controls that are specifically applicable to activities covered under this resolution. City Council may also lift the Moratorium prior to its expiration.

SECTION III - That this moratorium suspends and tolls the **Sunbury** Codified Ordinances, any time periods prescribed by law, within which any official or official body of the **City of Sunbury**, is required to take action upon an application for a permit, license, special use permit, building permit, site plan approval or the like, applications for rezoning to Limited Industrial District (L-I) for data centers and no such application shall be deemed to be approved by the failure of any other public official or official body to approve or deny said application during the time when this moratorium shall be in effect.

SECTION IV - That the City Manager is hereby directed to begin a study to recommend what action, if any, the **City of Sunbury** should take to preserve the public health, safety and welfare through the provision of adequate planning, zoning, land-use, or other regulatory controls that are specifically applicable to data centers.

SECTION V - If any section, phrase, sentence, or portion of this resolution is for any reason held invalid or unconstitutional by any Court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision, and such holding shall not affect the validity of the remaining portions thereof.

SECTION VI - That it is found and determined that all formal actions of the Council of the **City of Sunbury** concerning and relating to the adoption of this resolution were taken in an open meeting of the Council of the **City of Sunbury** and that all deliberations of this City's Council and any of its committees that resulted in those formal actions were in meetings open to the public, in compliance with all legal requirements.

WHEREFORE, pursuant to Section 4.07 of the Charter of the City of Sunbury, this Resolution shall be in effect immediately after its passage.

VOTE ON SUSPENSION OF THE RULES

YEAS

NAYS

VOTE ON RESOLUTION 2026.12

YEAS

NAYS

PASSED: _____, 2026

Joseph St. John, Mayor

ATTEST:

Alyssa Graziano, Clerk of Council

CERTIFICATION

I hereby certify on this _____ day of _____, 2026, that the foregoing is a true and accurate copy of the Resolution passed at the meeting held on _____, 2026 of the City of Sunbury, County of Delaware, State of Ohio.

Alyssa Graziano, Clerk of Council